

Kuldeep Kumar vs State Of H.P. And Others on 24 July, 2024

Neutral Citation No. (2024:HHC:5730) IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr. MMO No.1218 of 2023 .

Reserved on: 08.07.2024.

Date of Decision: 24.07.2024.

Kuldeep Kumar

Versus

State of H.P. and others

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to

Hon'ble Mr Justice Rakesh Kainthla, Judge. Whether approved for reporting?1 Yes For the Petitioner : Mr Akshay Pardhan, Advocate, through video conferencing with Ms. Ankita, Advocate.

For the Respondents : Ms. Ayushi Negi, Deputy Advocate General, for respondents No.1 to 3- State.

Ms. Rashmi Pamar, Advocate, for respondent No.4.

Rakesh Kainthla, Judge The petitioner has filed the present petition for quashing the order dated 16.05.2023 passed by learned Sub Divisional Magistrate Shillai, District Sirmour (learned Trial Whether reporters of Local Papers may be allowed to see the judgment? Yes.

Court), vide which a search warrant for the minor son of the petitioner and respondent No. 4 (applicant before learned Trial .

Court) was issued based on the application filed by her (applicant). (The parties shall hereinafter be referred to in the same manner as they were arrayed before the learned Trial Court for convenience).

2. The facts giving rise to the present petition are that the applicant filed an application before the learned Trial Court under Sections 97 and 98 of Cr. P.C. for issuing a search warrant (of the house of respondent No.1) to search the minor and his production before the Court for handing over his custody to the applicant. It was asserted that the applicant is the wife of respondent No.1. The marriage between them was solemnized on 11.12.2019 as per Hindu rites and customs and one son aged one year was born to them. Respondent No.1 visited the applicant's house on 07.02.2023 and took the minor with him.

He did not return the minor. The minor is only one year old and cannot live without his mother. He wants to join the company of the applicant but respondent No.1 has illegally confined him to his house. The applicant visited the house of respondent No.1 to bring the minor with her. The respondent No.1 did not allow her to do so. Hence, the prayer was made to issue the search warrants against respondent No.1 for the search of the minor.

3. The notice of the application was not issued to any person.

4. The learned Trial Court passed an order on 16.05.2023 directing the issuance of a search warrant for the search of the minor. The police produced the minor before the learned Trial Court on 26.05.2023 at 11:40 AM. The custody of the minor was handed over to the applicant. Her statement was recorded and the case file was closed.

5. Being aggrieved from the order passed by the learned Trial Court, the petitioner/respondent No.1 has filed the present petition for quashing the order. It has been asserted that the applicant started misbehaving with respondent No.1 and his elderly mother soon after the marriage. Efforts were made to reconcile the matter but they were unsuccessful. The minor was admitted to the hospital. The applicant created pressure upon respondent No.1 and his family to drop her at Paonta Sahib. The respondent No. 1 managed to do so. When respondent No.1 returned to her home, he found that the applicant had taken all the cash and jewellery with her. She lodged an FIR against respondent No.1 and also filed a complaint against him under .

Section 12 of the Protection of Women from Domestic Violence Act, 2005. The applicant was previously married and she solemnized her marriage with respondent No.1 without dissolving her first marriage. Respondent No.1 filed a petition before the Family Court at Roorkee to declare the marriage null and void. No incident as asserted in the application had taken place. The police visited the house of respondent No.1 and took the minor with them. The minor has been living with respondent No.1 since his birth. There was no material to show that respondent No.1 had confined the minor wrongly in his home. The issuance of the search warrants was not justified and it was beyond the scope of Section 97 of Cr.P.C. The remedy of the applicant was to approach the Court under the provision of Hindu Minority and Guardianship Act, 1956 to seek the custody of the minor. Respondent No.1 was a natural guardian and had not committed any offence against the minor. The applicant had herself left the minor in the custody of respondent No.1.

Therefore, it was prayed that the present petition be allowed and the order dated 16.05.2023 be quashed.

6. The petition is opposed by the respondent/State by filing a reply making a preliminary submission regarding the .

lack of cause of action. It was asserted that the search warrant was issued under Section 97 of Cr.P.C. by the learned Trial Court.

The police executed the warrant and recovered the minor from the house of respondent No.1. The police produced the minor before the learned Trial Court on 26.05.2023. The police have discharged their duties and complied with the directions issued by the competent authority. The petition was wrongly filed against the police; therefore, it was prayed that the present petition be dismissed.

7. No reply was filed on behalf of the applicant.

8. I have heard Mr Akshay Pardhan, learned counsel through video conferencing with Ms Ankita, learned counsel for respondent no. 1, Ms Ayushi Negi, learned Deputy Advocate General, for the respondent/State and Ms Rashmi Parmar, learned counsel for the applicant.

9. Mr Akshay Pardhan, learned counsel for the petitioner/respondent No.1 submitted that the learned Trial Court has no jurisdiction to issue the search warrant because the custody of a child by the father is not unlawful and does not constitute an offence. The remedy of the applicant was to .

approach the civil Court to seek the custody of the minor.

Therefore, he prayed that the present petition be allowed and the order passed by the learned Trial Court be quashed.

10. Ms Ayushi Negi, learned Deputy Advocate General for the respondent/State submitted that as per Section 6 of the Hindu Minority and Guardianship Act, the custody of the minor aged less than 5 years has to remain ordinarily with the mother.

The minor was aged about one year at the time of the incident and the learned Trial Court had rightly handed over the custody to the mother. There is no infirmity in the order passed by the learned Trial Court. Hence, she prayed that the petition be dismissed.

11. Ms. Rashmi Parmar, learned counsel for the applicant adopted the submissions of Ms. Ayushi Negi and submitted that the remedy of respondent No.1 is to approach the Civil Court and not this Court for seeking the custody of the minor; therefore, she prayed that the present petition be dismissed.

12. I have given considerable thought to the submissions at the bar and gone through the records carefully.

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13. The learned Trial Court had issued the order under Section 97 of Cr.P.C. which reads as under:

97. Search for persons wrongfully confined.--If any District Magistrate, Sub-Divisional Magistrate or Magistrate of the first class has reason to believe that any person is confined under such circumstances that the confinement amounts to an offence, he may issue a search warrant, and the person to whom such warrant is

directed may search for the person so confined; and such search shall be made in accordance therewith, and the person, if found, shall be immediately taken before a Magistrate, who shall make such order as in the circumstances of the case seems proper.

14. It is apparent from the bare perusal of the Section that the learned Magistrate should be satisfied before issuing search warrants that a person is confined under such circumstances that confinement amounts to an offence. Section 6 of the Hindu Minority and Guardianship Act provides that the natural guardian of a Hindu minor in respect of his person and his property in the case of a boy or unmarried girl is the father and after him the mother. Therefore, the Act provides that the father is the natural guardian and his custody cannot amount to an offence.

15. Reliance was placed upon the proviso, which states that ordinarily the custody of a minor, who has not completed .

the age of 5 years shall be with the mother. However, this proviso deals with the custody and not the guardianship. This proviso does not make the custody of the father unlawful to attract Section 97 of CrPC.

16. It was laid down by the Hon'ble Supreme Court in *Ramesh v. Laxmi Bai*, (1998) 9 SCC 266 that when the child was living with his father, Section 97 of Cr.P.C. was not attracted to the case. It was observed:

"4. From a perusal of the impugned order of the High Court, it appears to us that though the points which should weigh with a court while determining the question of grant of custody of a minor child have been correctly detailed, the opinion of the High Court that the revisional court could have passed an order of custody in a petition seeking search warrants under Section 97 CrPC in the established facts of the case is untenable. Section 97 CrPC prima facie is not attracted to the facts and circumstances of the case when the child was living with his own father. Under the circumstances, we are of the opinion that the orders of the High Court dated 17-7-1996 and that of the learned Additional Sessions Judge dated 9-7-1996 cannot be sustained and we accordingly set aside the orders and the directions given therein." (Emphasis supplied)

17. This judgment was followed by this Court in *Ankush Thakur versus State of H.P.* 2012 (1) Shim. LC 423 wherein a minor aged one year 2 months and 18 days was with the father and warrant under Section 97 of Cr.P.C. was issued by learned SDM.

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The Court held that the learned SDM exceeded his jurisdiction to issue the warrant. It was observed:

"16. There is no denial that Master Karanvir Singh Thakur was born on 9.6.2010. The copy of the complaint under Sections 97, 98 Cr.P.C. has been placed on record. In the complaint, it has been stated that petitioners No. 1 to 3 on 27.8.2011 took away the child from the care and custody of respondent No.3. On 27.8.2011 Master Karanvir Singh Thakur was 1 year 2 months and 18 days old. Section 4 (c) of the Hindu Minority & Guardianship Act, 1956 (for short 'Act') defines a natural guardian: means any of the guardians mentioned in Section 6. Section 6 provides that natural guardians of a Hindu minor, in respect of the minor's person as well as in respect of the minor's property in the case of a boy, the father, and after him, the mother: provided that the custody of a minor who has not completed the age of five years shall ordinarily be with the mother.

17. Section 97 Cr.P.C. provides that if any, District Magistrate, Sub Divisional Magistrate or Magistrate of the 1st Class has reason to believe that any person is confined under such circumstances, that the confinement amounts to an offence, he may issue, a search warrant, and the person to whom such warrant is directed may search for the person so confined; and such search shall be made in accordance therewith and the person, if found, shall be immediately taken before a Magistrate, who shall make such order as in the circumstances of the case seems proper.

18. The words 'confines' and 'offence' are significant in Section 97 Cr.P.C. The words 'confine' or 'confined' have not been defined in Cr.P.C. The 'offence' has been defined in Section 2 (n) Cr.P.C. means any act or omission made punishable by any law for the time being in force and includes any act in respect of which a complaint may be made under Section 20 of the Cattle Trespass Act, 1871 (1) of 1871."

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18. In the present case, the learned SDM erred in issuing the search warrants without satisfying the essential condition laid down in Section 97 of CrPC and the order passed by him is not sustainable.

19. Consequently, the present petition is allowed and the order dated 16.05.2023 passed by learned SDM is quashed and set aside and the custody of the minor is ordered to be restored to respondent no. 1. The applicant shall, however, be at liberty to initiate appropriate proceedings for seeking the custody of the minor as per the law. The present petition stands disposed of, so also the pending miscellaneous applications, if any.

20. Registry is directed to transmit the record of the case to the learned Trial Court forthwith.

(Rakesh Kainthla) Judge 24th July, 2024 (Nikita)